Zimbabwe

Public Holidays and Prohibition of Business Act

Chapter 10:21

Legislation as at 31 December 2016

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Public Holidays and Prohibition of Business Act (Chapter 10:21)
Contents

1. Short title 1

2. Public holidays 1

3. Prohibition of business 1

Schedule (Section 2) 2

Zimbabwe

Public Holidays and Prohibition of Business Act

Chapter 10:21

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AN ACT to establish public holidays in Zimbabwe; and to provide for the prohibition of business on particular days in the national interest.

1. Short title

This Act may be cited as the Public Holidays and Prohibition of Business Act *[Chapter 10:21]*.

2. Public holidays

(1) The days specified in the Schedule shall be public holidays:

Provided that—

(i) when a public holiday falls on a Sunday, the Monday following shall be a public holiday;

(ii) when the 26th December falls on a Monday, the Tuesday following shall be a public holiday.

(2) The President may, by statutory instrument, declare that any day shall be a public holiday.

3. Prohibition of business

(1) If at any time it appears to the President necessary or expedient in the interests of Zimbabwe, he may, by statutory instrument, declare that on any particular day or days—

(a) no business or class of business shall be conducted or transacted;

(b) any institution or premises or class of institution or premises shall not be open to members of the public for conducting or transacting business.

(2) In any statutory instrument referred to in subsection (1) the President may declare that the day or days mentioned in that notice shall be deemed to be a non-business day for the purposes of the Bills of Exchange Act *[Chapter 14:02]* and thereupon that Act and any other law shall apply as though the said day or days were non- business days for the purposes of that Act.

(3) It shall not be lawful to transact or conduct any business in contravention of any notice referred to in subsection (1) and any business purported to be transacted or conducted in contravention of such notice shall be of no effect.

(4) Any person who—

(a) transacts or conducts any business; or

(b) opens any institution or premises;

in contravention of a notice referred to in subsection (1) shall be guilty of an offence and liable to a fine not exceeding level five or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

[subsection amended by section 4 of Act 22 of 2001]

Schedule (Section 2)

Public holidays

1. New Year's Day.
2. Independence Day, being the 18th April.
3. Good Friday.
4. The Saturday between Good Friday and Easter Sunday.
5. Easter Monday.
6. Worker's Day, being the 1st May.
7. Africa Day, being the 25th May.
8. The second Monday in August and the day following, which shall be designated as Heroes' Day and Defence Forces National Day, respectively.

   [paragraph substituted by Act 17 of 2001]
9. National Unity Day, being the 22nd December.

   [paragraph substituted by Act 17 of 2001]
10. Christmas Day and the day following.